

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2026CUPP064603: JASON MENDELL vs COMMUNE VTA, LLC, A DELAWARE
LIMITED LIABILITY COMPANY, et al.**

07/01/2026 in Department 21

**Motion to Strike Portions of Complaint by Commune VTA, LLC, Aldersgate Investment,
LLC and Aldersgate Construction Company, Inc.**

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendants Commune VTA, LLC, Aldersgate Investment, LLC and Aldersgate Construction Company, Inc.’s Motion to Strike Portions of Complaint (*Opposed*)

Tentative Ruling:

Defendants Commune VTA, LLC, Aldersgate Investment, LLC and Aldersgate Construction Company, Inc.’s Motion to Strike the prayer for punitive damages is DENIED.

Defendants are ordered to file an answer within 10 days.

Plaintiff’s counsel to give notice.

Discussion:

Defendants Commune VTA, LLC, Aldersgate Investment, LLC, and Aldersgate Construction Company, Inc. (“Contractor”) (collectively “Defendants”) seek to strike the punitive damages allegations at page 8, lines 22-23, and the prayer for punitive damages from the complaint. The complaint alleges causes of action for (1) negligence; (2) trespass; (3) nuisance; and (4) declaratory relief.

Facts alleged by Plaintiff in the Complaint:

- The complaint alleges that the two properties shared a common boundary, that the project included a one-story subterranean garage, and that excavation would extend to the

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property boundaries, including along much of the boundary with Plaintiff's property. This supports knowledge that adjacent-property stability was directly implicated.

- Defendants hired Defendant Aldersgate specifically to design and construct temporary shoring so excavation could proceed "without causing damage to adjacent properties." (Comp. ¶ 16.) This supports the inference that Defendants understood, before excavation began, that the work created a risk of damage to neighboring property unless shoring was adequate.

- Defendant Aldersgate's shoring design allegedly supported excavation only to 11 feet below grade. The complaint alleges that Defendant Aldersgate designed the shoring elements "to support excavation to a depth of eleven (11) feet below grade." (Comp. ¶ 16.) This supports an inference that Defendants knew, or should be charged with knowledge, that excavation beyond that design depth created an increased risk.

- Defendants all allegedly attended the August 2024 preconstruction meeting at the Commune Property. (Comp. ¶ 18.) This supports an inference that the shoring/excavation plan and adjacent-property risks were known project issues to the developer entities, contractor, and shoring engineer before construction began, and, not isolated field-level events.

- After Defendant Aldersgate installed soldier piles, Defendant Aldersgate tested the shoring system and determined that the system "may not hold" during excavation of the basement. Defendant Aldersgate then installed additional cement-mixed walls to try to remedy the issue. (Comp. ¶ 21.) This supports actual or constructive knowledge of a specific dangerous condition. It shows the risk of shoring failure was allegedly identified before the failure occurred.

- Despite that known shoring concern, Contractor began constructing the basement. The complaint alleges that once Defendant Aldersgate finished the shoring system, Contractor proceeded with basement construction, and that Defendants and Contractor did not provide written notice to Plaintiff that they would be excavating within several feet of his property to depths greater than eleven feet below grade. (Comp. ¶ 22.) This supports an inference that Defendants knew the excavation depth and proximity were material safety issues, yet did not notify the adjoining owner.

- Contractor allegedly excavated under the southwest corner of Plaintiff's building and removed lateral and subjacent support. The complaint further alleges that Contractor's actions were so concerning to Defendant Aldersgate that Defendant Aldersgate documented the event and alerted Plaintiff. (Comp. ¶ 23.) This supports knowledge in two ways: the excavation was visibly invading/supporting Plaintiff's structure, and Defendant Aldersgate treated the event as serious enough to document and report.

- Contractor allegedly installed a dewatering system along the entire shared boundary, with pumps within a few feet of Plaintiff's property, and ran them continuously. (Comp. ¶ 24.) While this is not as strong as the shoring facts, it supports knowledge that

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Defendants were actively working directly against the shared boundary and knew their construction activities were adversely affecting Plaintiff's property.

- By May 2025, Contractor allegedly excavated to a depth “substantially deeper than the effective depth of the shoring system that Defendant Aldersgate designed.” (Comp. ¶ 25.) This suggests to conscious disregard at the least. The inference is: Defendants knew the design limit, knew the system had already tested poorly, and nevertheless proceeded beyond the effective shoring depth.
- The shoring failed shortly after the excessive excavation near Plaintiff's property. The failure itself is not a pre-incident knowledge fact, but it corroborates the pleaded risk: the very danger that the shoring was meant to prevent allegedly occurred after excavation exceeded the shoring's effective depth.

These facts support an inference that Defendants were aware of the probable dangerous consequences of their conduct and deliberately failed to avoid them. This is the type of showing California law recognizes as potentially sufficient for punitive “malice” based on conscious disregard.

The facts also support oppression, or despicable conduct. The supporting facts include: knowledge that excavation beyond 11 feet below grade was not supported and posed risks to the adjacent property; proceeding with basement construction despite knowing the system “may not hold”, and without giving proper notice to Plaintiff; removal of the retaining wall and privacy fence after Mansi allegedly promised replacement and an easement; loss of security resulting in vandal access and the need for Plaintiff to build a temporary fence; continuous dewatering pumps near the Plaintiff's property that allegedly damaged landscaping, created noise, emitted noxious odors, and interfered with Plaintiff's use and enjoyment; and the post-failure condition in which the property was red-tagged, unusable, and incapable of repair because Commune and Aldersgate allegedly had not repaired the failed shoring.

For entity liability, the Mansi allegations are noteworthy. Civ. Code § 3294 requires that, for a corporate/employer defendant, the oppression, fraud, malice, authorization, or ratification be by an officer, director, or managing agent. The complaint alleges that Mansi controlled the operations of Defendants and Contractor directly or indirectly; that he was manager of Defendant Aldersgate; that he was president of Contractor; and that the entities were part of a common business enterprise. Those facts connect the alleged punitive conduct to a person with sufficient corporate authority. A managing agent is one who exercises substantial discretionary authority over significant aspects of corporate business, not merely a low-level supervisor.

Conclusion: Defendants' Motion to Strike Punitive Damages is DENIED. Plaintiff has pled more than conclusory facts in the complaint that might, if proven true, rise to the level of clear and convincing evidence of fraud, oppression, or malice.